

5. No appearance is required at the hearing on August 12, 2026.

9. 9:00 AM CASE NUMBER: C24-01704

CASE NAME: RAMY EDEN VS. AU ENERGY, LLC

ENTRY OF CONSENT JUDGMENT

FILED BY: EDEN, RAMY KAUFLE

TENTATIVE RULING:

Summary

On March 6, 2026, Plaintiff Ramy Eden ("Plaintiff") filed an unopposed Motion for Entry of Consent Judgment seeking approval of the parties' Stipulated Consent Judgment against Defendant AU Energy, LLC ("Defendant"). The motion is **granted**. No appearance is required at the hearing on August 12, 2026.

Background

This action was brought pursuant to California Health and Safety Code section 25249.5 et seq. ("Proposition 65") alleging that Defendant violated Proposition 65 by exposing individuals to unleaded gasoline vapors at its service stations located at 3621 San Pablo Dam Road, El Sobrante, California and 2876 El Portal Drive, San Pablo, California without providing clear and reasonable warnings as required by law. Following arm's length negotiations between parties separately represented by counsel, the parties reached a settlement that resolves all claims in this action. The settlement requires Defendant to provide compliant warnings at the subject stations, pay a civil penalty as a deterrent to future violations, and pay Plaintiff's reasonable attorneys' fees and costs.

The motion was duly served upon the California Attorney General and Defendant's counsel, with the hearing noticed for August 12, 2026, which is more than forty-five days after service upon the Attorney General as required by California Code of Regulations title 11, section 3008. As of the filing of the Declaration of Compliance, neither Defendant, the Attorney General, nor any other party has filed opposition to the motion or objection to the stipulated settlement. Plaintiff has further advised the Court, pursuant to section 3008(a)(2) of Title 11 of the California Code of Regulations, that the Attorney General's failure to comment shall not be construed as endorsement of or concurrence in the settlement.

Analysis

The Court finds that the settlement complies with all statutory requirements set forth in Health and Safety Code section 25249.7, subdivision (f)(4). The warning provisions satisfy Proposition 65's mandate for "clear and reasonable" warnings prior to exposure to known carcinogens. The civil penalty amount is reasonable based upon the criteria set forth in Health and Safety Code section 25249.7(b)(2).

The award of \$15,000 in attorneys' fees and costs is reasonable under California law and authorized pursuant to Health and Safety Code sections 25249.7(b) and 25249.12(c)(1) and Code of Civil Procedure section 1021.5.

Voluntary conciliation and settlement are the preferred means of dispute resolution, reducing the

expense and persistency of litigation while promoting peace and goodwill in the community. The settlement serves the public interest by ensuring that California consumers receive proper warnings about exposure to gasoline, a chemical listed by the State as known to cause cancer, thereby fulfilling the animating purpose of Proposition 65: to protect the people of California against carcinogenic chemicals and to inform them about exposures to such chemicals. The settlement is fair, reasonable, and in the interest of the public. Accordingly, the Court finds good cause to approve the settlement and enter and judgment entered in accordance with its terms.

Ruling

1. The Motion is **granted**.
2. The Court will execute the proposed order and judgment lodged on March 6, 2026.
3. Plaintiff's Counsel is directed to enter the judgment.
4. No appearance is required at the August 12, 2026 hearing.

10. 9:00 AM CASE NUMBER: C24-03401
CASE NAME: RAYMOND TENORIO VS. FORD MOTOR COMPANY
BE RELIEVED AS COUNSEL RE: HILLARY JOHNS
FILED BY: MODVANS , INC.

TENTATIVE RULING:

Summary

Counsel Hillary Johns Trial Lawyer by and through Hillary Johns, Esq. ("Withdrawing Counsel") filed a Motion to Be Relieved as Counsel for Defendant Modvans, Inc. ("Modvans"). The Motion is **granted** as set forth herein. No appearance is required provided that Counsel abides by the Court's orders below.

Background

In this case, Plaintiff Raymond Tenorio alleges a breach of warranty among other theories, against Defendant Ford Motor Company and Modvans. The trial is set for January 4, 2027, and an issue conference is calendared for December 11, 2026.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Withdrawing Counsel. The Court acknowledges that the prejudice to Modvans is minimal, as there is ample time for Modvans to retain trial counsel. Modvans is a corporation and must retain counsel.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing